

SOFTWARE LICENSE AND SUPPORT AGREEMENT

This Software License and Support Agreement (the "Agreement") is entered into as of January 8, 2026 (the "Effective Date"), by and between **Vertex Analytics Ltd.**, a company incorporated under the laws of England and Wales with its registered office at 45 Canary Wharf, London E14 5AB, United Kingdom ("Licensor"), and **Pacific Retail Systems Pty Ltd**, an Australian proprietary limited company with its principal place of business at 12 Collins Street, Melbourne VIC 3000, Australia ("Licensee").

1. License Grant

Licensor grants Licensee a non-exclusive, non-transferable license to use the Vertex Analytics Platform (the "Software") solely for Licensee's internal business operations. Licensee shall not reverse engineer, sublicense, or provide access to the Software to any third party without Licensor's prior written approval.

2. Term and Termination

The initial term of this Agreement is thirty-six (36) months from the Effective Date. Licensee may terminate for convenience upon **forty-five (45) days** written notice. Licensor may terminate immediately if Licensee fails to pay fees when due and does not cure within ten (10) business days, or if Licensee violates the license restrictions in Section 1.

3. Governing Law and Jurisdiction

This Agreement shall be governed by the laws of **England and Wales**. The Parties submit to the exclusive jurisdiction of the courts of London, England for any dispute arising from or relating to this Agreement, including interpretation of license scope and support service levels.

4. Limitation of Liability

LICENSOR SHALL NOT BE LIABLE FOR LOST PROFITS, LOSS OF DATA, OR BUSINESS INTERRUPTION. LICENSOR'S AGGREGATE LIABILITY FOR ALL CLAIMS UNDER THIS AGREEMENT IS LIMITED TO FEES PAID BY LICENSEE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR **500,000 USD** (FIVE HUNDRED THOUSAND DOLLARS), WHICHEVER IS GREATER.

5. Confidentiality and Data Protection

Licensee shall treat all source code, API documentation, and security audit reports as "Confidential Information." Licensee shall implement reasonable technical safeguards for personal data processed through the Software in accordance with applicable data protection laws. Confidentiality obligations survive termination for **four (4) years**.